BEFORE THE DIRECTOR OF THE

ARIZONA DEPARTMENT OF HEALTH SERVICES

In the Matter of: White Mountain Health Center, Inc, Appellant.	Case No.: 2024C-MMR-0130-DHS NOTICE OF INFORMAL SETTLEMENT CONFERENCE

PURSUANT TO the request of the Appellant, you are hereby notified that the Arizona Department of Health Services ("Department") will conduct an informal settlement conference at 150 W. 18th Ave., Phoenix, AZ 85007, Suite 345A on December 7, 2023 at 1:00PM to discuss the Department's October 13, 2023 Notice of Intent to Revoke Dispensary Registration Certificate.

YOU ARE NOTIFIED that the conference will be conducted under the authority of and in accordance with Arizona Revised Statutes ("A.R.S.") Title 41, Chapter 6, Article 10.

YOU ARE ADVISED that you have the right to be represented by counsel, or to proceed without counsel. A.R.S. § 41-1092.07.

Should you desire to hold this informal settlement conference telephonically, please contact the Clerk of the Department at (602) 542-1020 or via email at acr@azdhs.gov prior to the scheduled date.

PURSUANT TO A.R.S. § 41-1092.06(B), YOU ARE FURTHER NOTIFIED that statements, either written or oral, made by the Appellant at the conference, including written documents, created or expressed solely for the purpose of settlement negotiations are

inadmissible in any subsequent administrative hearing. The parties participating in the settlement conference shall waive their right to object to the participation of the agency representative(s) in the final administrative decision.

Persons with a disability may request a reasonable accommodation, such as a sign language interpreter, by contacting the Clerk of the Department, Arizona Department of Health Services, 150 N. 18th Ave., Room 200, Phoenix, Arizona 85007, (602) 542-1020. Requests should be made as early as possible to allow time to arrange the accommodation.

Dated this 2nd day of November, 2023.

Kimberly Kaplan
Director's Designee

ORIGINAL filed on the 2nd day of November, 2023 with:

Clerk of the Department
Arizona Department of Health Services
150 N. 18th Ave., Ste. 200
Phoenix, AZ 85007

COPY of the foregoing sent by certified mail return receipt requested
on the 2nd day of November, 2023:

Lloyd Levidow, Owner
Jeffrey Scott Kaufman, Owner
Russell Clayton Riggs, Owner
Daryl Wayne Williams Jr, Owner
White Mountain Health Center, Inc.
9420 West Bell Road, Suite 108
Sun City, AZ 85351

Barrett & Matura, PC
Jeffrey Matura
White Mountain Health Center, Inc.
8925 East Pima Center Parkway Suite 215
Scottsdale, Az 85258

COPIES of the foregoing sent by electronic/interdepartmental/regular mail
on the 2nd day of November, 2023 to:

Lloyd Levidow, Owner
Jeffrey Scott Kaufman, Owner
Russell Clayton Riggs, Owner
Daryl Wayne Williams Jr, Owner
White Mountain Health Center, Inc.
9420 West Bell Road, Suite 108
Sun City, AZ 85351

Barrett & Matura, PC
Jeffrey Matura
White Mountain Health Center, Inc.
8925 East Pima Center Parkway Suite 215
Scottsdale, Az 85258
jmatura@barrettmatura.com

Gregory W. Falls
Matthew A. Hesketh
Shayna Stuart
Sherman & Howard L.L.C.
2555 East Camelback Road, Suite 1050
Phoenix, Arizona 85016
gfalls@shermanhoward.com
mhesketh@shermanhoward.com

sstuart@shermanhoward.com

Thomas Salow, Assistant Director
Megan Whitby, Deputy Assistant Director
Kimberly Crawford, Deputy Section Chief
ADHS/Division of Public Health Services-Licensing Services
150 N. 18th Ave.
Phoenix, AZ 85007
PHLENF@azdhs.gov

Brian Del Vecchio, Administrative Law Judge
Office of Administrative Hearings
1740 W. Adams St., Lower Level
Phoenix, AZ 85007